Prevention of Sexual Harassment Policy

Open Network for Digital Commerce

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Distribution

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2.0	ICC Members - Deepti, Nitin Mishra, Nishima Kaler, Anupama Priyadarshini, Pratibha Advani (External)	Internal Complaints Committee	16 January 2025

1. Introduction:

This policy has been framed in accordance with the provisions of "The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013" and rules framed thereunder (hereinafter "**the Act**"). Accordingly, while the policy covers all the key aspects of the Act, for any further clarification reference shall always be made to the Act and the provisions of the Act shall prevail.

At Open Network for Digital Commerce and all its subsidiaries ("**ONDC**" / "**Company**"), we have zero tolerance for Sexual Harassment at Workplace. Our aim is to create a comfortable environment that encourages the growth and development of all our people, and we strongly believe that having a secure and fearless work environment at ONDC is pivotal to our success as an organization. We encourage harmonious work relations, based on mutual trust and respect between all Employees. Discrimination and Harassment of any type is strictly prohibited. ONDC wishes to promote and maintain this culture to ensure that Employees do not engage in practices that are abusive in any form or manner whatsoever. The Prevention of Sexual Harassment Policy ("**Policy**") has been formed to prohibit, prevent, and deter the commission of acts of Sexual Harassment at the Workplace and to provide the procedure for the Redressal of Complaints pertaining to Sexual Harassment.

2. Applicability

This Policy applies to all Employees of ONDC. The Policy is gender-neutral and applies equally to all Employees. This Policy is applicable for ONDC and its subsidiaries.

3. Definitions:

Please refer to Annexure A for the relevant definitions.

4. Roles and Responsibilities:

a. **Employee:** The Employees must refrain from engaging in or supporting Sexual Harassment in any form. They should report unwelcome behaviour, support Aggrieved Employees experiencing Harassment, and assist in complaint processes if required.

b. **HR Department:** The HR Department must ensure Employees are aware of the Policy and have undertaken the mandatory training. It is responsible for promoting and maintaining a safe, harassment - free environment while upholding zero tolerance for Sexual Harassment. The Department must encourage Employees to report any unwelcome behaviour, support Aggrieved Employees experiencing harassment, and assist in complaint processes when required. It must foster an open communication, encouraging Employees to come forward and speak up without fear. Additionally, the HR Department must facilitate timely communication with Employees and ensure compliance with the Policy.

c. **Internal Complaints Committee ("IC"):** IC must conduct fair, unbiased inquiries in line with natural justice principles. It must maintain confidentiality, submit an annual report on cases and actions, and recommend appropriate corrective measures. Additionally, the IC should guide employees in filing police complaints for incidents occurring outside the Workplace, if required.

d. **Employer:** The Employer must ensure a safe, harassment-free work environment and uphold zero tolerance for Sexual Harassment. It must facilitate complaint procedures, provide support to the Aggrieved Employee, and ensure timely action on IC recommendation(s). The Employer must offer additional support, such as role transfers, department changes, and access to professional counselling if required.

5. Internal Complaints Committee:

The IC has been constituted under the Act for the timely and impartial resolution of complaints of Sexual Harassment at all Workplaces of ONDC.

The Guidelines for the formation of the IC are given below:

a. A Presiding Officer who shall be a woman employed at a senior level at the Workplace from amongst the Employees.

b. Not less than two members from amongst Employees preferably committed to the cause of women or who have had experience in social work / women empowerment / POSH related matters or have legal knowledge.

c. One member from amongst Non-governmental Organizations or Associations committed to the cause of women or a person familiar with the issues relating to Sexual Harassment.

d. The Presiding Officer and every member of the IC shall hold office for such a period, not exceeding three years, from the date of their nomination.

e. A member of the IC may resign at any time by tendering his/her resignation in writing to the Presiding Officer. The Presiding Officer shall submit their resignation in writing to the Employer.

5.1 Removal of IC member or Presiding officer:

In the event that the Presiding Officer and / or any member of the IC:

a. contravenes any provisions of the Policy; or

b. has been convicted for an offence or an inquiry into an offence under any law for the time being in force is pending against him / her; or

c. has been found guilty in any disciplinary proceedings or a disciplinary proceeding is pending against him / her; or

d. has so abused his / her position as to render his / her continuance in office prejudicial to public interest, such Presiding Officer or member as the case may be, shall be removed from the IC.

5.2 Replacement of IC member or Presiding officer:

Any vacancy created due to cessation of employment, resignation, death, disability or removal, as applicable, shall be filled by a fresh nomination by the Company in accordance with the appropriate guidelines, within and no more than 120 days.

The Committee may also undergo rotation of members and maintain a balance between continuing members and new members.

6. Filing a Complaint

If any employee believes they have been subjected to sexual harassment, they may file a complaint by writing to speakup@ondc.org. Anyone can report concerns regarding sexual harassment to this email address

In case the complaint is against a review committee member, the complaint shall automatically be escalated to ICC. All complaints Access to this common email ID and any related communications will be restricted to the Vice President - People & Culture, and Lead - Legal. These individuals together constitute the Review Team.

The Review Team will review all protected disclosures within 5 working days of receipt of the complaint to determine the appropriate course of action. Post due deliberations, If the Review Team decides that the complaint requires investigation, they will inform the IC about the receipt of the complaint. The Review Team will then discuss the complaint with IC members and form a quorum for review and investigation. reviewed by the Review Committee will be required to be updated to the ICC in the quarterly review meeting.

A complaint of Sexual Harassment should include the following details:

a. Circumstances giving rise to the complaint;

b. Dates of the alleged occurrences; and

c. Names of witnesses, if any.

Complaints must be submitted to the IC as soon as the incident occurs and no later than 3 months from the date of the incident. In the case of a series of incidents, the complaint should be filed within 3 months from the date of the last incident. Complaints filed after this period may not be pursued unless there are extraordinary circumstances preventing the Complainant

from raising the concern. IC will determine whether extraordinary circumstances exist to extend the complaint period.

If an Aggrieved Employee is unable to file a complaint in writing, they may seek help from any member of the IC to render reasonable support in filing the complaint.

If the Aggrieved Employee is unable to lodge the complaint on account of their incapacity, the following may do so on their behalf, with their written consent:

a. Legal heir, relative or friend,

b. Co-worker

c. An officer of the National Commission for Women or State Women's Commission

d. Any person having knowledge of the incident

In case of mental incapacitation of the Aggrieved Employee, the following may also file the complaint on behalf of the aggrieved employee:

a. A special educator

b. A qualified psychiatrist or psychologist

c. the guardian or authority under whose care they are receiving treatment

d. Any person who has knowledge of the incident jointly with the persons mentioned above

In case the aggrieved employee is dead, the complaint may be filed by any person with knowledge of the incident may file the complaint with the written consent of their legal heir.

Complainants, and witnesses shall be protected from exposure, retaliation, or hostility. Retaliation is a serious violation of this Policy. Any person found to have retaliated against an individual for reporting harassment or for acting as a witness will face appropriate disciplinary action of a severe nature.

If the IC finds that any witness in an inquiry has testified falsely on oath or submitted forged or misleading documents, it may recommend disciplinary action against the concerned Employee. This Policy is intended to ensure a safe, respectful, and harassment-free Workplace for all Employees.

7. Process of Dealing with Complaints:

The Complainant is advised to maintain a record of incidents, including dates, times, locations, possible witnesses, what happened, and their response. While it is not mandatory to have a

record of events to file a complaint, maintaining such a record can strengthen the case and help the Complainant recall details over time.

The below stated process is a part of the rules of ONDC and shall supersede any other rules of similar nature except where expressly made applicable. Any matter not directly expressed in this Policy shall fall within the discretion of the management to provide for. The procedure outlined is directory in nature and will be followed as far as practicable, depending on the facts and circumstances of each case.

7.1 Steps to be Followed Upon Receiving a Complaint:

a. IC may ask the Complainant to prepare a detailed statement of incidents and allegations.

b. Before initiating an inquiry, and at the request of the Complainant, the IC may attempt to settle the matter between the Complainant and the Respondent through conciliation. However, no monetary settlement shall be made as a basis for conciliation.

c. If a settlement is reached, copies of the settlement will be provided to both the Complainant and the Respondent. No further inquiry shall be conducted by the IC in such a case.

d. If an inquiry is to be conducted, the complaint and/or the statement of allegations will be shared with the Respondent.

e. The Respondent will be asked to prepare a response to the complaint and/or statement of allegations and submit it to the IC within the given time.

f. IC will organize hearings with both the Complainant and the Respondent. Meetings may be conducted through video conference, in person or any other mode.

g. IC will collect testimonies from other relevant persons and review evidence wherever necessary.

h. IC will arrive at a decision after carefully and fairly reviewing the circumstances, evidence, and relevant statements.

7.2 Guidelines for Conducting the Inquiry:

a. IC will endeavour to complete the inquiry process within 90 days of submission of the complaint.

b. Both parties will be given a reasonable opportunity to be heard, along with witnesses, and to produce any other relevant documents.

c. Upon completion of the investigation, both parties will be informed of the results. The inquiry report will be shared with both parties within ten (10) days of the closure of the inquiry.

d. Measures, including movement from teams, change of supervision, or placing parties on leave, may be taken by IC to avoid hostility between the parties and/or retaliation against witnesses.

e. Both parties are required to refrain from any form of threat, intimidation, or influencing of witnesses.

f. The investigation will be conducted in a manner that maintains confidentiality to the extent practicable under the circumstances.

g. IC may recommend transferring the Complainant or Respondent to another department or team during the pendency of the inquiry, if deemed necessary.

h. The rules of natural justice shall be followed by IC.

8. Decisions and Actions:

Upon the completion of an investigation, a conclusion will be made and given regarding the validity of the Harassment allegations. If Harassment is established, appropriate disciplinary action will be taken against the Respondent. Such disciplinary action may include counselling, a warning, transfer, suspension, or termination, among other measures.

IC holds the discretion to recommend actions concerning both the Complainant and the Respondent, pending the outcome of the complaint. These recommendations may include transfer, leave, or a change in work location or department. IC is required to share its recommendations or report with the Employer, as well as with the aggrieved party and the Respondent, within 10 days of completing the inquiry.

Following receipt of the IC's report or instructions received from the Employer Office, the HR team will implement the recommended disciplinary action at the earliest but not later than 60 days.

This Policy aims to provide a fair process that allows ONDC's employees to report instances of Harassment and ensures timely and appropriate resolution.

If the investigation reveals that a complaint was made with malicious intent—with the objective of maligning the concerned individual, tarnishing their reputation within the company, or settling personal or professional grievances—disciplinary action may be taken against the Complainant. Such action will be consistent with the measures applicable to a Respondent. However, malicious intent will only be established following a thorough inquiry. It is important to note that a mere lack of evidence does not constitute malicious intent.

i. Appeal:

Any party aggrieved by the implementation or non-implementation of recommendations may appeal to the appellate authority under the Act and rules within ninety (90) days of receiving the recommendations. The grounds for Appeal are:

a. The Employer does not recommend IC's recommendation or take any action.

b. The Complainant or the Respondent is not happy with the decision of IC.

10. Statutory Reporting and Compliance:

The Employer must report the number of Sexual Harassment complaints received, disposed of, and pending for over 90 days during the year. They must also disclose the number of workshops or awareness programs conducted and the nature of actions taken by the Employer or District Officer.

All Employees of the Company are required to comply with the provisions of this Policy.

11. Amendments:

The Company reserves the right to amend the Policy from time to time in order to comply with any laws /rules/regulations that come into effect from time to time, related to Sexual Harassment.

12. Interpretation:

In any circumstance where the terms of this Policy are inconsistent with any existing or newly enacted law, rule, regulation, or standard governing the Company, the said law, rule, regulation, or standard will take precedence over this Policy.

ANNEXURE - A

Definitions:

"Employer" means any person responsible for the management, supervision and control of the workplace and the person discharging contractual obligations with respect to his/her employees.

"Employee" means a person employed at a workplace for any work on regular, permanent, temporary, ad hoc or daily wage basis, either directly or through an agent, including a contractor, with or, without the knowledge of the principal employer, whether for remuneration or not, or working on a voluntary basis or otherwise, whether the terms of employment are express or implied and includes a co-worker, a contract worker, intern, trainee, apprentice or called by any other such name.

"Workplace" means in addition to the place of work, it extends to any place visited by the employee arising out of or during the course of employment and includes transportation provided by the Company for undertaking such journey, and the employee's home in case the employee is working from home as per company policies.

"Aggrieved Employee" means in relation to a workplace, any individual, of any age whether employed in the Company or not, who alleges to have been subjected to any act of Sexual Harassment by the another associate of the Company.

"Complainant" means the person who files the complaint. They may be the aggrieved employee, or in the event that the aggrieved employee dies or cannot file a complaint on account of his/her physical or mental incapacitation or otherwise, his/her legal heir or such other as may be prescribed may make a complaint.

"Respondent" means a person against whom the Complainant has made the complaint.

"Internal Complaints Committee" means the committee constituted by the Employer to receive and handle formal complaints of sexual harassment in the organisation.

"Presiding Officer, ICC" means the person who will chair the ICC meetings. This will be a woman employed at a senior level in the organization or workplace

"Quorum" refers to the minimum number of members required to hold a meeting. The quorum of the IC shall consist of at least three members, including the Presiding Officer and an external member.

"Sexual harassment" includes any unwelcome sexually determined behaviour (direct or implied) such as physical contact and advances, unwelcome communications or invitations, demand or request for sexual favors, sexually coloured remarks, showing pornography, creating a hostile work environment and any other unwelcome "sexually determined behaviour" (physical, verbal or non-verbal conduct).

Sexual Harassment would include, but is not limited to, the following:

Quid pro quo sexual harassment, which means something in return or an exchange for another.

a. In the workplace, quid pro quo sexual harassment takes place if sexual favors are asked in exchange for any kind of special treatment on the job. Threatening an Associate about his/her present or future employment status if he/she does not consent to such sexual advances or a favor also amounts to sexual harassment. The act of 'asking' may either be verbal, in writing or implied and the 'sexual conduct' may be verbal, physical or through any other conduct. But, in all cases, it must be unwelcome.

b. For e.g.: Direct or implied requests or offers by any employee for sexual favors in exchange for actual or promised job benefits such as favourable reviews, salary increases, promotions, increased benefits, or continued employment constitutes sexual harassment.

Hostile work environment sexual harassment which includes:

a. Hostile environment sexual harassment occurs when either speech or conduct of a sexual nature takes place, and is seen or perceived as offensive and interferes with the work performance of the recipient, or any one or more employees.

b. Hostile environment sexual harassment may also include intimidating or harassing conduct that is directed at an individual, or a group of individuals.

c. It will also mean related retaliation which includes marginalising someone in the workplace with regard to their roles and responsibilities, socially ostracizing, intimidating someone physically, psychologically, and emotionally or someone close to or related to the victim, to the extent the humiliation or intimidation affects the health or safety of the employee.

This is only an indicative list of the possible acts which could be treated as sexual harassment and is in no way intended to be construed as an exhaustive list.

ANNEXURE - B

Current composition of IC:

Presiding Officer – Pritha Datta

External Member – Pratibha Advani

Member - Deepti Pandey

Member – Akansha Tyagi

Member - Shreyansh Shah